



# ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session  
Majority Research Staff*

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**HB 2195: nursing facilities; records; surveys; timelines**

## **BLISS FLOOR AMENDMENT**

1. Prohibits DHS from imposing a violation on a licensee for not making a vaccination available if there is a shortage of that vaccination.
2. Removes the quality assurance document provisions.
3. Describes what is a long-term incident report.

BLISS FLOOR AMENDMENT  
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2195  
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 36-406, Arizona Revised Statutes, is amended to  
3 read:

4 36-406. Powers and duties of the department; access to  
5 personnel records

6 A. In addition to its other powers and duties:

7 1. The department shall:

8 (a) Administer and enforce this chapter and the rules, regulations  
9 and standards adopted pursuant ~~thereto~~ TO THIS CHAPTER.

10 (b) Review, and may approve, plans and specifications for  
11 construction or modification OF or additions to health care institutions  
12 regulated by this chapter.

13 (c) EXCEPT AS PROVIDED IN SUBSECTION B OF THIS SECTION, have access  
14 to books, records, accounts and any other information of any health care  
15 institution THAT ARE reasonably necessary for the purposes of this  
16 chapter.

17 (d) Require as a condition of licensure that nursing care  
18 institutions and assisted living facilities make vaccinations for  
19 influenza and pneumonia available to residents ~~on-site~~ ON-SITE on a yearly  
20 basis. The department shall prescribe the manner by which the NURSING  
21 CARE institutions and ASSISTED LIVING facilities ~~shall~~ MUST document  
22 compliance with this subdivision, including documenting residents who  
23 refuse to be immunized. [The department shall not impose a violation on a  
24 licensee for not making a vaccination available] [THIS SUBDIVISION DOES  
25 NOT APPLY] if there is a shortage of [that vaccination] [A VACCINE] in  
26 this state as determined by the director.

27 2. The department may:

1 (a) Make or cause to be made inspections consistent with standard  
2 medical practice of every part of the premises of health care institutions  
3 ~~which THAT~~ are subject to ~~the provisions of~~ this chapter as well as those  
4 ~~which THAT~~ apply for or hold a license required by this chapter.

5 (b) Make studies and investigations of conditions and problems in  
6 health care institutions, or any class or subclass thereof, as they relate  
7 to compliance with this chapter and rules, regulations and standards  
8 adopted pursuant ~~thereto~~ TO THIS CHAPTER.

9 (c) Develop manuals and guides relating to any of the several  
10 aspects of physical facilities and operations of health care institutions  
11 or any class or subclass thereof for distribution to the governing  
12 authorities of health care institutions and to the general public.

13 B. THE DEPARTMENT'S ACCESS TO THE PERSONNEL RECORDS OF A NURSING  
14 CARE INSTITUTION IS LIMITED TO THE FOLLOWING INFORMATION FOR EACH  
15 PERSONNEL MEMBER, EMPLOYEE OR VOLUNTEER:

16 1. THE INDIVIDUAL'S NAME, DATE OF BIRTH AND CONTACT TELEPHONE  
17 NUMBER.

18 2. THE INDIVIDUAL'S STARTING DATE OF EMPLOYMENT OR VOLUNTEER  
19 SERVICE AND, IF APPLICABLE, THE ENDING DATE.

20 3. DOCUMENTATION OF ALL OF THE FOLLOWING AS PERTAINING TO THE  
21 INDIVIDUAL:

22 (a) QUALIFICATIONS, INCLUDING SKILLS AND KNOWLEDGE APPLICABLE TO  
23 THE INDIVIDUAL'S JOB DUTIES.

24 (b) EDUCATION AND EXPERIENCE APPLICABLE TO THE INDIVIDUAL'S JOB  
25 DUTIES.

26 (c) COMPLIANCE WITH THE REQUIREMENTS OF SECTION 36-411.

27 (d) ORIENTATION AND IN-SERVICE EDUCATION AS REQUIRED BY POLICIES  
28 AND PROCEDURES.

29 (e) Licensure OR CERTIFICATION, IF THE INDIVIDUAL IS REQUIRED TO BE  
30 LICENSED OR CERTIFIED PURSUANT TO THIS ARTICLE OR POLICIES AND PROCEDURES.

31 (f) IF THE INDIVIDUAL IS A BEHAVIORAL HEALTH TECHNICIAN, CLINICAL  
32 OVERSIGHT AS REQUIRED BY RULE.

33 (g) CARDIOPULMONARY RESUSCITATION TRAINING, IF REQUIRED FOR THE  
34 INDIVIDUAL BY RULE.

35 (h) FIRST AID TRAINING, IF REQUIRED FOR THE INDIVIDUAL PURSUANT TO  
36 THIS ARTICLE OR POLICIES AND PROCEDURES.

37 (i) EVIDENCE OF FREEDOM FROM INFECTIOUS TUBERCULOSIS, IF REQUIRED  
38 FOR THE INDIVIDUAL BY RULE.

39 (j) IF THE INDIVIDUAL IS A NUTRITION AND FEEDING ASSISTANT, BOTH:

40 (i) COMPLETION OF THE NUTRITION AND FEEDING ASSISTANT TRAINING  
41 COURSE AS REQUIRED BY RULE.

42 (ii) A NURSE'S OBSERVATIONS AS REQUIRED BY RULE.

43 Sec. 2. Title 36, chapter 4, article 7, Arizona Revised Statutes,  
44 is amended by adding section 36-447.03, to read:

45 36-447.03. Surveys; statement of deficiencies; initiation of  
46 complaint investigations; time frames; record  
47 retention

1           A. THE DEPARTMENT SHALL ISSUE ANY STATEMENT OF DEFICIENCIES TO A  
2 NURSING CARE INSTITUTION WITHIN TEN BUSINESS DAYS AFTER COMPLETING THE  
3 STATE SURVEY.

4           B. THE DEPARTMENT MAY NOT INITIATE A COMPLAINT INVESTIGATION  
5 RELATING TO A NURSING CARE INSTITUTION MORE THAN TWELVE MONTHS AFTER THE  
6 ALLEGED BASIS OF THE INCIDENT OCCURRED UNLESS THE COMPLAINT INVOLVES  
7 ALLEGATIONS OF CRIMINAL ABUSE OR NEGLECT AND A FAILURE BY A PERSON WHO HAS  
8 A DUTY TO REPORT THE POSSIBLE ABUSE OR NEGLECT PURSUANT TO SECTION 13-3620  
9 OR 46-454. IF RECORDS THAT ARE MAINTAINED PURSUANT TO ARTICLE 4 OF THIS  
10 CHAPTER HAVE BEEN LAWFULLY DESTROYED PURSUANT TO RETENTION REQUIREMENTS,  
11 THE DEPARTMENT MAY NOT CITE THE LICENSEE FOR FAILURE TO PRODUCE THE  
12 RECORDS FOR AN INVESTIGATION INITIATED MORE THAN TWELVE MONTHS AFTER THE  
13 ALLEGED BASIS OF THE INCIDENT OCCURRED.

14           C. THE DEPARTMENT SHALL INITIATE COMPLAINT INVESTIGATIONS RELATING  
15 TO NURSING CARE INSTITUTIONS CONSISTENT WITH THE CENTERS FOR MEDICARE AND  
16 MEDICAID SERVICES TIME FRAMES BASED ON THE TRIAGED SEVERITY LEVEL OF EACH  
17 COMPLAINT.

18           Sec. 3. Section 36-2402, Arizona Revised Statutes, is amended to  
19 read:

20           36-2402. Quality assurance activities: sharing of quality  
21           assurance information: immunity: confidentiality

22           A. State health care providers, hospitals and outpatient surgical  
23 centers shall, and other health care entities may, conduct quality  
24 assurance activities.

25           B. A health care entity may share quality assurance information  
26 with appropriate state licensing or certifying agencies and with licensed  
27 health care providers who are the subject of quality assurance  
28 activities. A hospital may share quality assurance information with other  
29 health care entities only with the approval of the hospital's medical  
30 executive committee or an equivalent committee.

31           C. A health care entity may share quality assurance information  
32 with other health care entities only for the purpose of conducting quality  
33 assurance activities.

34           D. A health care entity or person that provides or receives  
35 information, that participates, takes any action or makes any decision or  
36 recommendation in the course of quality assurance activities or that  
37 furnishes any records, information or assistance to a health care entity  
38 for or in the course of quality assurance activities is not subject to  
39 liability for civil damages or any legal action in consequence of such  
40 action except as provided in section 36-445.02.

41           E. Quality assurance activities conducted by state, county or local  
42 medical, pharmacy and dental associations and societies on behalf of a  
43 health care entity are immune from civil liability to the same degree as  
44 the facility for which the review activities are conducted.

45           F. Health care entities may jointly conduct quality assurance  
46 activities.

1 G. This section does not relieve any health care entity from  
2 liability arising from the treatment of a patient or from negligent  
3 credentialing decisions.

4 ~~[H. QUALITY ASSURANCE DOCUMENTS PREPARED BY A NURSING CARE~~  
5 ~~INSTITUTION PURSUANT TO THIS SECTION ARE NOT A PART OF A PATIENT'S MEDICAL~~  
6 ~~RECORD. QUALITY ASSURANCE DOCUMENTS PROVIDED BY A NURSING CARE~~  
7 ~~INSTITUTION TO THE DEPARTMENT OF HEALTH SERVICES FOR REGULATORY PURPOSES~~  
8 ~~REMAIN CONFIDENTIAL AND PRIVILEGED PURSUANT TO SECTION 36-2403.]~~

9 [H. LONG-TERM CARE INCIDENT REPORTS:

10 1. ARE A RISK MANAGEMENT TOOL TO BE USED SOLELY FOR INTERNAL  
11 INVESTIGATIONS AND QUALITY IMPROVEMENT EFFORTS.

12 2. ARE CONFIDENTIAL RECORDS OF AN UNPLANNED EVENT OR OCCURRENCE  
13 THAT IS INCONSISTENT WITH ROUTINE CARE AND THAT MAY IMPACT A RESIDENT'S  
14 SAFETY, HEALTH OR WELL-BEING.

15 3. ARE USED TO SUPPORT FOLLOW-UP ACTIONS AND IDENTIFY OPPORTUNITIES  
16 FOR IMPROVEMENT AND MANAGE RISK.

17 4. ARE MAINTAINED SEPARATELY FROM THE RESIDENT'S MEDICAL RECORD.]

18 Enroll and engross to conform

19 Amend title to conform

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